

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 1912

By: Pae, Alonso-Sandoval,
Miller of the House

and

Murdock of the Senate

11 COMMITTEE SUBSTITUTE

12 An Act relating to folic acid; creating the Corn Masa
13 Nutrition Enhancement Act; defining terms; requiring
14 corn masa flour contain certain amounts of folic
15 acid; requiring wet corn masa product contain certain
16 amounts of folic acid; providing exceptions;
17 requiring nutritional labeling; requiring manufacture
18 labeling; providing exceptions; providing for
19 codification; and providing an effective date.

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21 SECTION 1. NEW LAW A new section of law to be codified
22 in the Oklahoma Statutes as Section 1-1145 of Title 63, unless there
23 is created a duplication in numbering, reads as follows:

24 This act shall be known and may be cited as the "Corn Masa
Nutrition Enhancement Act".

SECTION 2. NEW LAW A new section of law to be codified

in the Oklahoma Statutes as Section 1-1145.1 of Title 63, unless
there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Corn masa flour", also commonly known as masa harina, means
a dry flour-type product made from corn that has been treated with
slaked lime or otherwise undergoes a process known as
nixtamalization;

2. "Snack foods" means pre-packaged food items typically
intended for immediate consumption, characterized by small or
single-serving portions, and designed primarily for consumption
between meals. This includes, but is not limited to, products such
as chips, crisps, or extruded snack products, often sold
individually or in small bags or containers. Snack foods shall not
include bulk-packaged corn masa products or other items commonly
used as primary ingredients in meal preparation, such as tortillas;
and

3. "Wet corn masa product" means food manufactured by using an
alkali solution with corn kernels to transform them into nixtamal.
Wet corn masa product does not include products made with corn masa
flour.

B. 1. Commencing January 1, 2027, corn masa flour
manufactured, sold, delivered, distributed, held, offered for sale,
or used as an ingredient in the manufacture of a food product shall

1 contain folic acid at a level of seven-tenths (0.7) milligrams of
2 folic acid per pound of corn masa flour within an acceptable
3 industry standard deviation of error.

4 2. Commencing January 1, 2027, wet corn masa product
5 manufactured, sold, delivered, distributed, held, offered for sale,
6 or used as an ingredient in the manufacture of a food product shall
7 offer for sale product containing folic acid at a level of four-
8 tenths (0.4) milligrams of folic acid per pound of end product
9 within an acceptable industry standard of deviation of error.

10 3. This section shall not apply to certified organic foods.

11 4. In addition to the above exception, grocery stores may offer
12 one non-fortified option to allow for consumer choice.

13 C. Commencing January 1, 2027, corn masa flour or a wet corn
14 masa product shall include both of the following:

15 1. A declaration of folic acid on the nutrition label in
16 accordance with applicable federal law, including, but not limited
17 to, 21 C.F.R., Section 101.9; and

18 2. A declaration that the product contains corn masa flour or
19 was manufactured through a wet corn masa manufacturing process.

20 D. 1. A person or entity may manufacture, sell, deliver,
21 distribute, hold, offer for sale, or use as an ingredient in the
22 manufacture of products corn masa flour that does not meet the
23 requirements of paragraph 1 of subsection B of this section, if they
24 meet the definition of, or are suppliers to, any of the following:

1 a. a cottage food operation,

2 b. a food facility, or

3 c. a small-volume operator.

4 2. This section shall not apply to snack foods.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1-1145.2 of Title 63, unless
7 there is created a duplication in numbering, reads as follows:

8 A. Nothing in this act shall be construed to require the
9 mandatory addition of synthetic folic acid to any food product when
10 an alternative form of folate is lawfully available and medically
11 appropriate.

12 B. Any requirement or authorization under this act relating to
13 folate supplementation shall allow the use of alternative, naturally
14 occurring or biologically active forms of folate, including but not
15 limited to L-methylfolate or folinic acid, in lieu of synthetic
16 folic acid.

17 C. No person, food producer, processor, retailer, or parent
18 shall be penalized, restricted, or otherwise disadvantaged for
19 choosing, producing, selling, or consuming food products that
20 utilize an alternative form of folate or that do not contain
21 synthetic folic acid.

22 D. Nothing in this act shall be interpreted to override
23 parental rights, informed consent, or individualized medical
24 decision-making, particularly for individuals with known or

1 suspected genetic conditions affecting folate metabolism, including
2 but not limited to methylenetetrahydrofolate reductase (MTHFR) gene
3 variants.

4 E. Any public health guidance issued pursuant to this act shall
5 include clear disclosure that:

6 1. Synthetic folic acid is not metabolized equally by all
7 individuals; and

8 2. Alternative forms of folate exist and may be more
9 appropriate for certain populations.

10 SECTION 4. This act shall become effective November 1, 2026.

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12 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
13 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.
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